Precedent memo: Harlan Mills v. Petrov

Oregon Court of Appeals, decided 2023-11-02 - memo by the employment group

1. Holding

A 24-month non-compete for a sales director was cut to 12 months. Terms longer than 12 months are presumptively unreasonable for non-executive staff.

2. Facts

Petrov ran regional sales for a lumber mill and left for a competitor in Idaho.

3. Firm position

We represented Harlan. Expect any term over 12 months to be narrowed.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.